sues to work through if *Smith* were overruled. To name a few: Should entities like Catholic Social Services—which is an arm of the Catholic Church—be treated differently than individuals? Cf. *Hosanna-Tabor Evangelical Lutheran Church and School* v. *EEOC*, 565 U. S. 171 (2012). Should there be a distinction between indirect and direct burdens on religious exercise? Cf. *Braunfeld* v. *Brown*, 366 U. S. 599, 606–607 (1961) (plurality opinion). What forms of scrutiny should apply? Compare *Sherbert* v. *Verner*, 374 U. S. 398, 403 (1963) (assessing whether government's interest is "'compelling'"), with *Gillette* v. *United States*, 401 U. S. 437, 462 (1971) (assessing whether government's interest is "substantial"). And if the answer is strict scrutiny, would pre-*Smith* cases rejecting free exercise challenges to garden-variety laws come out the same way? See *Smith*, 494 U. S., at 888–889.

We need not wrestle with these questions in this case, though, because the same standard applies regardless whether *Smith* stays or goes. A longstanding tenet of our free exercise jurisprudence—one that both pre-dates and survives *Smith*—is that a law burdening religious exercise must satisfy strict scrutiny if it gives government officials discretion to grant individualized exemptions. See *id.*, at 884 (law not generally applicable "where the State has in place a system of individual exemptions" (citing *Sherbert*, 374 U. S., at 401, n. 4)); see also *Cantwell* v. *Connecticut*, 310 U. S. 296, 303–307 (1940) (subjecting statute to heightened scrutiny because exemptions lay in discretion of government official). As the Court's opinion today explains, the government contract at issue provides for individualized exemptions from its nondiscrimination rule, thus triggering strict scrutiny. And all nine Justices agree that the City cannot satisfy strict scrutiny. I therefore see no reason to decide in this case whether *Smith* should be overruled, much less what should replace it. I join the Court's opinion in full.

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